

THE
C O U R T
OF
C H A N C E R Y :

A Satirical Poem.

BY
REGINALD JAMES BLEWITT,

LATE OF LINCOLNS INN.

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*** START OF THE PROJECT GUTENBERG EBOOK THE COURT OF
CHANCERY: A SATIRICAL POEM. ***

**THE
C O U R T
OF
C H A N C E R Y:**

A Satirical Poem.

BY

REGINALD JAMES BLEWITT,

LATE OF LINCOLNS INN.

When knaves and fools combined o'er all prevail,
When justice halts, and right begins to fail;
E'en then the boldest start from public sneers,
Afraid of shame, unknown to other fears;
More darkly sin, by satire kept in awe,
And shrink from ridicule, if not from law. BYRON.

LONDON:

PRINTED AND PUBLISHED BY J. KAY, 1, WELBECK STREET,
CAVENDISH SQUARE.
1827.

TO

MAJOR EDWARD BLEWITT,
OF LLANTARNAM ABBEY,
In the County of Monmouth,
THIS WORK IS INSCRIBED,
WITH EVERY SENTIMENT OF FILIAL AFFECTION,
BY HIS SON,
THE AUTHOR.

PREFACE.

The great delay and ruinous expenses of a Chancery suit have become proverbial. Shame to the country, that suffers such a stain upon its system of equitable jurisprudence! I offer no apology for taking up the tomahawk of censure against this dire national enemy. Would that I could use the weapon more dexterously! It must, however, be sufficient satisfaction for me to have removed the scalp of concealment, without being too particular about the skill, with which it has been effected.

As a poet, I must throw myself upon the indulgence of the public. For the last ten years I have sacrificed every literary attainment to the study of the law; and am therefore in the situation of a miner, who, after years of cheerless labour underground, should be expected to display any great ingenuity in the pursuit of a more enlightened occupation.

The subject is dull, but not unfruitful. I have thrown into the work as much amusement as my poor abilities would furnish me with, but my principal objects have been truth and consistency.—I presume, therefore, to assert that I have always been honest in commendation, and never severe without reason.

I wish it to be distinctly understood that, in my character of a vicious attorney, I do not mean to represent the profession at large. There are in town and country many upright practitioners, of whose friendship I should feel proud. A lawyer, however, may be often dishonest without the fear of detection, and indeed almost without the consciousness of doing wrong. In his practice the boundaries between good and evil are very slight, and may be imperceptibly transgressed. There is little merit in one, whom the fear of punishment deters from the commission of crime; but not to practice knavery when it can be done with ease and infinity is at all events a negative virtue deserving of no slight consideration.

The idea of writing this poem first occurred to me in the Park of Fontainebleau, where I composed the greater part of it. During its progress I have had no opportunity of referring to any publication on the subject, and

have, therefore, been compelled to draw very largely on my memory. This must be my excuse for any errors into which I may have fallen.

PARIS,
1st October, 1827.

PREFACE TO THE NOTES.

The evils of the Court of Chancery have latterly been so much discussed, that I have thought it unnecessary to enter into long explanations upon the different objects of censure contained in the poem. The notes, therefore, contain only such observations as appeared absolutely necessary to make some of the verses more intelligible than could be effected in poetry, without a very tedious and dull circumlocution. The books of Chancery, practice and the report of the commissioners appointed to investigate the subject, will supply all deficiencies of this sort.

R. I. B.

THE COURT OF CHANCERY: **A Satirical Poem.**

Oh! Court of Equity, misnamed, where doubt
Leads many in; whence few, or none, get out;
Where law presides, in semblance, but to mock,—
Like priests, that pray round felons on the block;—
Where justice sits, with even-handed scale,
To shew the heaviest purse,—which must prevail—
Where Truth confounded flies, or ne'er is seen,
And Falsehood flourishes—an evergreen;—
Where foul Corruption keeps his secret cave,
And robs the suitor he pretends to save.—
Oh! Court, before whose gate, with reddened eye
Pale Reason stands, and bids each Plaintiff fly;
Bids right shake hands with fraud, nor tempt the strife,
Begun in sorrow—ending not with life—
The legal contest, which may never cease,—
A cure perhaps—but worse than the disease—
Oh! Court, where dull Procrastination reigns
Lacking decision—not for want of brains—
Which crowds of spectres haunt their doom to know
In suits commenced two centuries ago—
Where all is wrong, and nothing certain, save
A blasted fortune, and an early grave.

Behold yon clown, whose frugal care has made
A pretty something in his humble trade;—
Fit object now for pillage of the law!—
He sells a field;—the vendee finds a flaw—
What mean those writings underneath his arm?
Why rise those smirks of gratulation warm
From hungry black-coats,—eager for the prey,—
Who crowd the boro' on a market day—^[1]
The game is up—around the blood-hounds close,
And snuff their victim with prophetic nose.
The case he tells most luminously dark,
And puzzles (what will not?) each country shark.
An action bring, your right at once to try
Cries one;—an action bring the rest reply—

All to one object with one feeling tend,—
Deceit the means, and robbery the end.
But how much will it cost? the rustic cries,
A song, a song—the ready fox replies—
For fifty pounds your battle will be won,
The thing, my friend, is clearer than the sun.
You know our office, come with me and look,
This very point is in the statute book,
Confirmed by fifty judges dead and gone,—
Each wiser in his time than Solomon—
If still from caution sage you fear to err,
Resort at once to some King's Counsellor;
His fee's two guineas—or about the mark—
With two and sixpence more to bribe his clerk,
Lest on the shelf your case despised should rot,
Or lose its turn, and be at last forgot.

The Gudgeon bites, and lawyer Grabble gains
Another Client to reward his pains.
A case is drawn, ingrossed, and sent to town,
And twelve months after comes th' opinion down.
Ill brooks exhausted Patience such a spell,
Tho' loth to quarrel with the name of Bell.
What does he promise failure or success?
His words are few, and those one can but guess—
Like strange Egyptian characters of yore,
Or pot-hooks drawn upon an alehouse door,
Or like the scrawls a spider's legs might trace,
When dipt in ink, upon as white a space—^[2]
“He cannot say, but much inclines to doubt
“The vendee's object will be brought about;
“And thinks the vendor has an equal chance,
“The law so much depends on circumstance—
“He knows not half the facts, so would advise
“That all disputes should end in compromise—
“But, if the vendor wish his luck to try,
“He straight must file a bill in Chancery.”^[3]

Well have we sped, exulting Grabble shouts,
For all is sure, when cautious Johnny doubts—
The client nods, uncertain what is meant,
And therefore fearful to withhold assent.
Forth, with instructions goes the post that eve,
And crafty Grabble chuckles in his sleeve—
Instructions for a bill, which agents wile
Before the term's last day may hope to file.
How vain that hope!—the dusty papers lie
For eighteen months within the draftsman's eye.
To all complaints he beats the ready chime:—
“More weighty matters had beguiled his time—
“Injunctions, that would not admit delay,
“Answers, demurrers—and the motion day,
“All marr'd his wishes to effect dispatch,
“Though failing not each leisure hour to snatch.
“Vacation comes, and then he will be able
“To clear with ease his now o'erloaded table.” ^[4]
Vacation past;—the agent calls again,
And finds the draftsman just returned from Spain.
The soot-clad parcel lies unopened still,
Knew'd by the rats, that hunger else would kill—
At last 'tis done, and then it must be sent
To country down for final settlement.
Then queries on the margin rise, like apes,—
And here and there a long hiatus gapes.
Facts change like mortals in a fairy tale,
And from a herring fancy coins a whale.
Then crowds of thrice repeated words express
What might be done in twenty thousand less;—
The whole one precious jargon, fitted well
To serve for fewel in a lawyer's hell.

But what says Grabble?—as the folios mount,
He must demand some money on account, ^[5]
To pay the counsel and the court their fees,
Lest justice' wheels be clogg'd for want of grease.

He dived deep into his pocket dives;
To part with cash his inmost bowels rives;
With deep-drawn sighs he counts each stiver o'er,
And deems the law a most infernal bore.
What gall'd already? not so quick, my friend,
Or rage will turn to madness in the end.
Who takes a voyage but expects to be
Annoy'd at first by sickness on the sea?
Should weak impatience make him growl and weep,
His friends would laugh, and bid him shun the deep.
Aye, shun, but how? why look before you leap.
When once embark'd, no more can wisdom say;
Endure the billows, bluster as they may.

But to proceed. The draft by Grabble's pen
Revised, must travel back to town again;
Again must be, neglected as before,
On draftman's desk for fifteen months or more;
Again must wander o'er the self-same track
From town to country, and from country back.
At last 'tis settled: then must clerks begin
To cut, prepare, and rule the parchment skin;
Then will their zeal demand an overpay,
And turn, for expedition, night to day,
T'ingross, examine, file;—another week
At least 'twill take; subpoenas then bespeak.
The seal is shut, and, if you wish them soon,
It must be open'd by a special boon—
The sum two guineas^[6]. Eldon! fie, for shame!
Nay, truth's a libel, spare his lordship's fame.
His wants are many, and his stipend clear
Scarce mounts to forty thousand pounds a year.
'Tis said, that justice to each subject down
Flows in a stream untainted from the crown.
Then say, can kings for justice gold demand?
If not, why claims that right a meaner hand?
As well to Peter might a bribe be given
For keeping (not the seals) but keys of heav'n!

Defendant serv'd, five months must pass, or near,
Before the law compels him to appear;
For like some barren tree deprived of fruit,
In long vacation is a country suit;
Or, like a vessel by receding tide,
Left helpless on the shore, where it must bide
Till tracing back its course the stream once more shall glide.

Term come, then try the process of contempt,
If still defendant should delay attempt.
Seal an attachment; bear the rogue to goal,
And hope your efforts may at last prevail.
But ah! what sadness clouds that altered mein?
What, if at large the stubborn foe is seen?—
His freedom gained, he pays the whole expense—
Not so, the practice is a vile pretence.
The greater loss from wrong to right rebounds;
Ten shillings his, and thine as many pounds. ^[7]

Appearance entered, but renews the sport;
Demand an answer by the clerk in court.
He calls, like Glendower for a magic band
Of Ocean sprites, that come not at command.
He calls once more in peremptory terms and clear;
But none so deaf as those who will not hear. ^[8]
At length an order comes,—if sharp the spur—
For six weeks time to answer, plead, demur.
Thus to some famish'd dog, that asks a bone,
Derision throws with scorn the flinty stone:
He seeks but little, and that little sought
With eagerness, when gain'd, amounts to nought.
'Tis all a mockery from first to last;—
Wait must the Plaintiff, and the mongrel fast.

Six weeks are gone—once more the game's alive;
Once more for breath must the Defendant strive.
Hark! thro' the purlieus dark of Chancery Lane

The dogs are roused,—the chase begins again,—
Again delay pursues its wonted chime,—
And claims at last another rule for time.

Why should I pause on points like these to dwell?
By such detail my pages idly swell?
The process slow and unrepaid the toil—
A worthless harvest in a barren soil.
The answer filed—three years at least fulfil
Their circling round since Wakefield^[9] drew the bill.
Then streams of lengthy dull exceptions flow
Which Koe must sign to humour Jemmy Lowe.^[10]
Amendments next that leave behind no trace
Of first complaint;—but make a novel case—
Continual reference to the Masters, who
Must have the wit to cut a hair in two;
So nicely drawn, so fine the point between
What it should not, or what it should have been.

Here Captain Cross^[11] assumes despotic sway
Enraged at all who dare his speech gainsay.
Once mighty ruler of a tamer crew,
Than ever Ballot from the plough-tail drew;
Like Falstaff's scarecrows—ragged, spare, and tall,—
Himself the greatest scarecrow of them all.
Oh! fortune, thou art but a fickle flirt!
For me why sprawl'd not Eldon in the dirt?
His carriage oft has passed me thro' the town,
But then alas! fate would not break it down.
Oh! fortune, all thy favors are but dross,
Or why bestow them on a man like Cross?
Thy modes are various, as thy whim is strange;
Or why a soldier to a lawyer change—
If such great merit must promotion get,
'Twere easy sure to add an epaulet.
There long he might have shined in native light,
At least a bully, if afraid to fight.
Oh! Master Cross, resume thy martial post,

Or deign in pity to give up the ghost.
Thy luckless errors never falling right,
Involve the suitors in perpetual night.
Thy brain's dark chaos working like a mole,
Directs each action, and pervades the whole;
Oh! may it have just sense enough to see
That all is truth the muse has said of thee!

Here Cox^[12], of foundling babes the foster sire,
Humane of temper, but too prone to fire,
In judgment sits to act by reason's rule;
Yet ever proves of prejudice the tool.
A look, a word mistaken, gives offence,
And thoughts distorted take the place of sense.
Some angry crotchet gets into his brain,
Hatched in caprice, and nurtured by disdain.
Persuasion fails to shew how warp'd his mind;
When anger rules, the soul itself is blind:
Confirmed by habit all his faults increase,
So let him mend, or else depart in peace.

Lo! waddling forth; in dignity of mein,
Corporeal Stratford^[13] from his haunt is seen.
That bloated form and pompous belly scan;
In shape and wit a very alderman!
Those vulgar looks his vulgar manners stamp,
For knowledge he ne'er burns the midnight lamp.
The sternest brute will sometimes kindness own,
Bend as you will, and Stratford yet will frown;
Enrag'd, he fain would kill you with a look,
Ye weak of skull, beware the flying book.
Hence to the rocky woods, thou growling bear,
Hence to the woods, and deal out justice there.
Hence to the woods; but 'ere thou dost escape,
Send to supply thy loss a real ape.
The suitors scarce will of their lot complain,
If by the change some intellect they gain.
Like thee. in gestures may his rage be dealt:

—like thee, in games may the rage be seen,
Like thee, the luckless volumes he may pelt;
Each art expressive of the monkey tribe,
Well hast thou learnt their natures to imbibe!

Next canting Stephen^[14] in his study see,—
Himself a slave, devising blacks to free.
Better endure the planters iron sway
Than pore on musty tomes the livelong day!
Better for stolen ease to bear the rack,
Than spend a life in one dull gloomy track!
No negro thou! what more when all is said?
He works by force, and you perhaps for bread.
The toil of both may prove a public good,—
Another's profit, or another's food.
But let me pass thy faults, if such they be—
And turn to one redeeming quality—
Well hast thou done to curb thy thirsty scribe
From taking what in truth is but a bribe;
A bribe, which those, who dole with sparing hand,
But little zeal of service can command.
Well hast thou done such odious spoil to slake!
An equal theft in those who give or take!

Nor yet forgotten is thy sleepy power,
Long-winded, doting, vain, capricious Trower^[15].
Some share of patience to the speaker lend,
Or useless every wish to comprehend!
Why wilt thou puzzle each half-witted elf,
By keeping all the converse to thyself?
Why wilt thou rave, till boggling in a mist,
Thou raisest points, which but in air exist—
Approve to day, to-morrow find a flaw—
And own at last that neither is the law.
Where are thy tubs, thy dirty smocks and gin?
Thy trade is washing, hence and take it in.

But turn my muse; it boots not more to trace
These nettv iudges of Southamnton Place

These petty judges of Southampton race.
Such office should some wiser head employ
Than driveling dotard or unlearned boy—
The first a friend to Eldon's childhood dear,—
The last a son of ministerial peer.
Alike unskilled they wander in the dark,
And stoop at last to counsel with their clerk.
Some dirty scribbler in a garret bred,
Thence taught by charity to write and read.
A wretched dolt, who gains his place by chance,
And takes promotion as his years advance;
Who now forsooth must act with scorn to those,
That pay him meanly, or his will oppose.
Thus Pugh and Hone^[16], and many more I know—
But these the worst,—I spare each meaner foe.

Still are there some this station doom'd to fill,
Who shame their masters by superior skill,
In Kensit's^[17] talent all a refuge find
From the dark nothingness of Stratford's mind;
And when at Cross the sense indignant groans,
It seeks for solace in thy kindness, Jones.
Fortune! from thee one favour let me crave!
Debase each tyrant, and exalt each slave!
Let those, who now ride topmost on thy wheel,
The sad reverse of bitter thralldom feel;
Look up to those on whom they now look down,
And learn the terror of a despot's frown.

Erroneous judgment breeds a like report,
And both will bear revision by the court;
Then must the cause experience more delay,
Last in the list that lengthens every day.
What if his Honor, after two long years,
Decide the question that he never hears!
Before the Vice or Rolls, it matters not
How heard or judged; alike the suitors lot.
From either sentence you may take appeals,
If faulty deemed, to him who holds the scale.

it faulty deemed, to him who holds the seals,
Then will some paltry point, of little worth
To him who doubts, or him who gave it birth,
Enchain the suit for ages, like a spell,
From which Impatience will in vain rebel;
Alas! my lord, yon starving paupers see!
How can they live upon a bare term fee?
Let still the client all his pangs endure,
But for thy brother tribe provide a cure.
Be Lord High Chancellor, if so you must,
But oh! resign some portion of thy trust—
Its various duties more attention claim
Than one weak head can muster for the same.

Young Peer^[18], be wise, and if you court success,
Outdo your senior^[19] by attempting less.
His failure served great talents to produce;
But what is intellect if not of use?
Well could he coin a doubt, or problem make—
But slow to solve, and there was his mistake.
His brains were sound; but little good they did.
Like some rich jewel in dark cavern hid.
Quick was his mind each error to perceive;—
Much craft had those who could that mind deceive—
A moment's thought would often shew a flaw,
Which those who look'd much deeper never saw.
Well was he skill'd to crack a wretched jest,
And all who laughed were sure to be caress'd.
He bore no rival in his high career,
As Leach^[20] can tell, at whom he lov'd to sneer;—
To Flattery he yielded blind assent;
On those who blam'd him hate itself was spent;
This Brougham^[21] has felt,—tho' all his merit own,
Deprived by malice of a silken gown.
And yet his visage, like a crocodile
Intending mischief, still could wear the smile.
Oft times a tear-drop down his cheek would flow,
While aged victims told their tale of woe—

Told of their hopes delay'd and run to waste,
With wealth before them, which they could not taste—
Told of their starving babes and buried wife,—
Themselves just tottering on the brink of life.
Then would he clasp his hands with false intent,
And call on heaven to witness what he meant,
With promise send the discontent away,—
Their judgment certain on a future day.
It comes—again he feigns the ready tear,—
As God's his judge, the papers are not here—
Where can they be?—his careful wife^[22] perhaps
Has torn the dusty lumber into scraps.
Mishap unfortunate! the suitor cries,
His Lordship nods assent, and wipes his eyes
With 'kerchief clean, in which a potent leak
Draws from each orb the stream that wets his cheek.
“Alas! my lord, when will the judgment come?—
“Send me the papers, and I'll take them home.”
The papers got, be sure to hand them in,
Tho' Hand^[23] to take them deem it half a sin,
And swears the mass now in his Lordship's house
Has left no cranny for the smallest mouse.
This all results from pre-concerted plan;
The master trifles, why should not his man;
Excuse, the judgment day by day protracts,
His mind still wavering, or forgot the facts;
And yet he seems not unabashed by shame,
Thus forced in self-defence the lie to frame.
As carelessly around his glance he throws,
Each eye takes shelter underneath his brows,
Then with apparent calmness in the face,
He strives to meet you, but 'tis all grimace;
Look as he will, the thinking mind can see
He half detests his own duplicity;
Shrinks from the gaze of those who weep around,
And in his bosom feels a deeper wound.
Oft have I marked him in an inward trance,
And watched the changes of his countenance:

Thus have I seen, or fancied to have seen,
Remorse and terror painted on his mein:
Remorse for mischief done at best in sloth,
And terror; but how short the reign of both,
More lively feelings soon his grief restrain,
And heartless Eldon is himself again.

Albeit, when thieves in penitence begin
To weep their guilty deeds, and fly from sin,
The world oft profits by their former vice,
Should chance enroll them in the state police;
They follow crime as some old fox might do,
Who hunted once, another should pursue,
Woe to the wretch, that struggles to evade
The wary cunning of such renegade;
In vain each wile, each mazy turn he tries,
For justice triumphs, and the culprit dies.
So hopes the world that Eldon, now resigned,
Will own the faults to which his eyes were blind;
Chase out corruption from his dark abode,
And cleanse each path where fraud the usurper strode;
Thus may he by that dying act efface
The burning stigma of a life's disgrace.

Shrink not, my lord, whate'er the muse appears,
She wars but feebly with declining years;
Compassion fetters what she fain would sing,
And robs severity of half its sting:
Those hoary locks command respect from youth,
But cannot wholly close the lips of truth.

Suppose the judgment given^[24]; but after years
Of endless labour, and a million tears:
Suppose the minutes by his lordship's scrawl
Drawn out and settled, after many a brawl;
Wherein loquacious Agar^[25] bears the bell—
An empty clapper in a brazen shell.
Hark! how the frothy nonsense from his lips

Involved the audience in one black eclipse,
From which in vain they struggle to be free.
When darkness triumphs, who can hope to see?
Gods! what a tongue, and what a lack of wits!
How well the former with the latter sits!
In him the worst of causes finds a friend;
He tears to tatters what he cannot mend.
But still his eloquence is most sublime,
In points of practice and in tricks for time;
In petty motions for some end absurd,
To please his Frowd, or gratify his Hurd.
When broken down, he next resorts to lies,
Disputes another's word, his own denies,
Insists that all the law is on his side
And Truth proclaims a perjured Suicide!
When on his legs, 'tis hard to get him down,
Tho' counsel cough, and oft his Lordship frown.
He bungles on; while dulness weaves a wreath
To crown his head when fairly out of breath,—
A wreath of poppies mingled with night-bane,
That once asleep, he ne'er may wake again.
Blest consummation! may it happen soon,
Or those, who hear, will first essay, the boon.

Agar farewell, but ere I cease to greet
Let me conduct thee to thy country seat.
Abode of taste, where all the graces shine,—
The prospect charming, and the site divine!
The road that leads from Battle Bridge pursue
To Kentish Town, and keep a dexter view;
There mark the walls of many coloured-brick,
With here and there a withered poplar stick.
A dirty gate straight walks of gravel shews,
The new canal around in silence flows;
Its fetid waters, stinking as they pass,
Contend in sweetness with the scent of gas.
Here Pancras rears it's charitable dome,
Thence Lincoln's inn, and thence the prison door.

There thickens smoke, and cloud the air in gloom;
Wheree'r you wander, or the sight divert,
One scene prevails of darkness, stench, and dirt.
Well in one picture might the muse record
How fine the mansion, and how wise it's lord.
Ye passengers! who from the road admire,
Let no wild transports tempt you to go nigher;
The rights of soil he zealously protects
By transportation, as the law directs!

Not mine the purpose step by step to shew
What makes the progress of a cause more slow:
Nor yet to trace the current of expense
Through all its mazes, but the whole condense.
The same complaints through all the system fly;—
Thus what I censure will to all apply.

Omit each intermediate step, and see
The cause at last from all incumbrance free,
And brought to issue;—then let Spence^[26] prepare
Interrogations for your friends to swear.
Propose each question so distinctly nice,
That all may keep within it, like a vice;
For should some idle word escape, who knows
But it might prove more fatal than from foes?
Avoid the hostile camp, and, if you can,
Before he speaks, examine well your man;
Teach him the lesson he has got to learn,
And let him thoroughly his cue discern;
Hold out large promise, if he meet your will,
And ere he comes to swear his belly fill.
If still reluctant, coax him with a bribe,
Persuading all—but most the Jewish tribe.

To strike commissioners is next the thing,
Four names a piece let either party bring;
Then from the four let each their two erase;
Seal quick the dedimus, and name a place;

Bespeak provision for a month at least,
And call your brother tigers to the feast;
So may they well that courtesy repay
By like invite upon a future day!
Of wine be careful to secure a stock—
Port, Champagne, Claret, Burgundy, and Hock.
Your guns arrange, call out your steeds and dogs,
For too much toil the mental action clogs.^[27]
What—if to keep your trust an oath be given;
Secure of hell, no longer think of heaven;
Enjoy the goods that knavery has sent,
And laugh and revel to your heart's content.
One day with opening the commission fill;
The next, with prefatory measures kill;
The third, discuss what will not question bear;
The fourth, for relaxation course a hare.
But why thus hunt a subject off it's legs?
I do but teach my grandam to suck eggs:—
An art attornies practice far too well,—
Yoke white, their own—a client takes the shell.
What if he grumble, theirs has been the toil,
With profit scarce to make the kettle boil.
A porter's lot would suit them better far;
No anxious cares his peaceful dream can mar;
While their reward for nightly want of ease,
Just adds a pint of ale to bread and cheese.

The scene is changed; behold that child of want
On dainties feeding, like a cormorant.
A venison pasty serves to make his lunch;
For dinner turtle soup with gelid punch,
Pheasant and partridge, quail, and ortolan,
Jellies, blancmange, pies, custards, parmesan,
To him it boots not what the price or fare,
Provided all be exquisite and rare.
When others pay the piper who would dine
On vulgar viands and a common wine?
The bill is paid, unnoticed all details,

And smirking waiters hail unusual vails.
The landlord smiles, tho' not of shame bereft
To be the pander of so base a theft.
The licens'd robber walks un-hang'd away,
And baffled ketch is cheated of his prey,
Not but that Jack to noose a friend might falter,
Tho' neck of none would better fit the halter.
Despair not, Grabble; give thy talents scope,
And in the end be certain of a rope—
It needs not much prophetic skill to trace
The gibbet's symbol pictured in thy face.

Six weeks or more in idle feasting spent,
The depositions then to town are sent,
Seal'd, and entrusted to a faithful guard,
Who will demand a guinea for reward.
The cause set down and publication pass,
Then seek of evidence the copied mass.
Peruse it well with all your cunning's stress;—
A trifling error will the whole suppress.^[28]
Then may the genial board again be spread,
And hungry friends at hostile cost be fed.
What! not a fault? has right at last prevail'd
And Agar's genius in it's zenith fail'd?
Did Spence so well th' interrogations draw
That ingenuity can find no flaw?
No leading question fatal to the whole?
No jurat faulty—not too scrawl'd the roll?
Examine all around the parchment skin
And find a part, in which it seems too thin.
Are all the words in orthographic dress?
No chance omission of the letter "s"
That letter, lately in a jurat missed,
Implied an oath on one "Evangelist"
Instead of four—on which unlucky grounds
The plaintiff lost a sum of eighty pounds.
What; from sworn clerks, to break their fealty hir'd,
Has nothing secret ere it's time transnired?

Has nothing secret ere its time disclosed.
Has no false wretch in shame at last reveal'd
A truth his wilful tongue at first conceal'd?
Then foul Procrastination hide thy face;—
'Tis something gain'd if causes keep their place;
As some weak foe against a stronger lance
May still withstand, though failing to advance.

Meanwhile the parties die away like martyrs,
Felo de se—shot—drown'd—or hung in garters—
A motley crew, who haunt the court in crowds,
And scream for justice from their tatter'd shrouds;—
Not rent by worms, for they would scorn to know
The wretched victim of a suit at law,—
Would turn with pity from the mould'ring frame,
And give to nobler animals the shame.
No, in each tattered shroud behold the sack
Some parish gave when law had stripp'd the back,
Had stripp'd it bare as on the day of birth,
And, but for this, had sent it bare to earth.

Repose, my muse; and listen to the groans.
Let weary lawyers rest awhile their bones.
Nature demands when mortals cease to live,
That nought should move until the corpse revive.
Just so in law all motion is repress,
When dies a wretch who had some interest,
No matter what—'tis clear that the survivor
Can take no step without a due revivor.^[29]

What! raise the dead? I hear the world exclaim,
With less of miracle, 'tis much the same.
In olden times the monks by potent spell
Could summon spectres from their narrow cell,—
Could send them howling back unto their graves
Or sink for ever in Egyptian waves.
So now the spiritual courts restore
A shade at least of him who breathes no more—
Unlike perhaps in stature form and mind

Online perhaps in stature, form, and mind,
But well for earthly purposes design'd—
A sort of proxy, who in matter civil
Must back his principal thro' good or evil.—
Taste not the honey, tho' he deem it sweet,
Nor 'scape the thorns, altho' they tear his feet.
In wrong or right the court's rapacious crew
Will have their fees, and ready payment too,—
But then all others from the spoil they scare,
Like hungry wolves, that no partition bear.
The poor trustee a thankless office boasts,
Nought can he gain, except a bill of costs.

Away from Doctors Commons bear the sprite,
And let him thence in Lincolns Inn alight.
There will he serve, like Hercules, to drag
The suit—a Cacus—from some dusty bag,
And rouse fierce Rapine from his lurking den
To feed once more upon the sons of men.

When time has number'd thus five years or more
The cause just stands where it was plac'd before—
Like flickering star, that seems in fancy's eye
To rove, a planet, thro' the midnight sky;—
But view'd more narrowly or with a glass,
We find its station ever, where it was.

Then flies another age; and Grabble dead
Some equal scoundrel must be found instead.^[30]
Demand the papers from his heir at law
Who strait a lumping bill of costs will draw.
This must be paid before a sheet shall go—
To bite the biter take his claim to Lowe.
Hail mighty Tonsor of a lawyers bill!
The whole profession trembles at thy skill.
Thine awful science, like a magic wand
Can turn each golden item into sand;
Reduce a crown to half, as quick as thought,
And turn each six and eight-pence into nought—

And turn each six and eight-pence into nothing
That placid eye and countenance demure
To passing glance would tell not much of lure,
Nor from thy speech so more than calmly smooth,
Would inexperience guess the serpent's tooth.
No beast, no reptile, bites his fellow kind;—
But those who trust in Lowe, deceit will find.
He smiles sometimes; but oh! beware that smile,
The certain symptom of some latent guile;
Or when perhaps he feels unusual glee,
To make large havoc with a queried fee.
But why thus censure what may tend to good?
The worst of poisons can be used for food.
And thus in Lowe, who brethren treats with scorn,
The suitor finds a friend when most forlorn.
Not that he acts his principles to shew—
But as in hatred to some mortal foe;
No matter whom—to him 'tis all the same,
How near in friendship, or how just in fame;
To all he deals his art insidious round,
And happy those who can escape a wound;

On, demon, on; pursue thy dark career,
Beloved by none, detested by thy peer.
On earth thy province leads to Satan's verge,
Then, as his bailiff, be thy brother's scourge!
And when from hell he goes for souls to pimp,
Be thine the task to pinch each naughty imp,—
To tear from Famine half its stygian meal,
And grind Despair for pastime on a wheel!

New brooms sweep clean, and with good luck to guide,
The cause at last may to a hearing glide;—
But not 'till many more long years have flown,—
Deaths and revivors following one by one.
Then draw the briefs, and on your clerks impose
That not for life they copy words to close;
It looks unseemly, thus the truth restrain:—
How much more seek you by such present gain

How much more cash you by such precept gain.
What means a brief? to shorten well the case,
And copious matter cram in narrow space.
Then what is this that modern counsel wield,
(A giant manual) when they take the field?
The pleading's length would make a saint bewail,
But why, like comet, must it have a tail?
With facts the speaker should his foe engage;
Then why with observations^[31] swell the page?
Ask not; the meaning more than light is clear,
That thieves are honest men, the law too dear.

Next to the bar, a less unworthy den,
Where shine at least some honourable men:—
But still e'en there the thirst of gain hath fix'd
Its blighting venom with dishonour mixed;
Hath hurl'd proud Reason from her proper throne,
And turn'd compassion to a block of stone.

In days of yore, when learning first began
To raise nice questions on the rights of man;
When law was as a science first revealed,
And civil wrongs by golden plaisters healed:
Superior talents throng'd the judgment place,
But not for lucre; bribes involved disgrace.
For rich and poor alike the voice was raised;
No sordid motives e'er that voice debas'd:
Ambition led; each sought the road to fame;
His country's praises, and an honest name.
How changed the manners of the present time,
Less fond of virtue, and more prone to crime;
Deserted poverty is heard no more,
Or heard in vain oppression to deplore.
Wealth spreads its influence in perpetual show'rs,
And rears of eloquence the choicest flow'rs.

Departed Romilly^[32]! the muse with tears
Turns to record what all thy merit sears.

The name of Goldsmith and the name of the poet.

One love or gold engaged thy mind too much,
And spoiled perfection with its reptile touch.
E'en while admiring senates hail'd thy speech—
The patriot, whom corruption could not reach;
Bold, independent, to thy country firm—
Thy mind was canker'd by the secret worm—
The worm of Avarice, that warps the sight,
And paints each shade of wrong with all the tints of Right.

But he is gone, and mem'ry hopes in vain
To find his likeness at the bar again.
His vice remains; but none are left behind
To serve as models of his noble mind.
With him in worth forensic knowledge fell,
And Genius drooping bade the court farewell.

Whom shall discernment now, alas! select
T' illumine Truth, and Falsehood's form detect—
T' argue still, in luckless Reason's spite,
That white is black, and black a shade of white?
Where all are nearly equal, small the choice,
Save in the windpipe, or the louder voice.
Shake all the host together in a hat,
And take them singly forth, whose name is that?

Hart^[33] sallies forth—but why was he put there?
His judgeship merges all the barrister.
Long may he live that dignity to keep,
And slumber now, as once he lull'd to sleep.
His name half serves my numbers to compose,
And turn dull poetry to duller prose.
Still might his long experience fit the place,
That Copley's sense without can never grace.

Of head acute and clear next Sugden see,^[34]
Apt at a jest, and quick in repartee.
Cool when assail'd, he often shuns a snare,
And leaves his fierce opponent writhing there.
In recollection strong, he bears a store

in recollection strong, he bears a store
Of points determin'd by the Court before;
Brings to his aid each well decided case,
And fastens Reason on its proper base.
Whate'er the side for which he pleads, be sure—
If best exertions can success secure.
Steadfast of heart no insult will he brook,—
The haughty gesture, or disdainful look.
With manly pride he speaks in open day
Whatever truth or duty bids him say.
Still must the muse with honesty avow,
Too much conceit at times will swell his brow.
“The Book on Powers” often will he cite
As something more than mortal's pen could write,
Wherein the Authors notions are to stand
For acts of legislation thro' the land,
And all, that wiser men have thought or said,
Yield to the phantasies of Sugden's head.
Nor this his only fault, as Sussex shew'd,
When on Sir Godfrey all their votes bestow'd,
Turn'd from the would-be statesman with disgust,
And left him humbled to the very dust;
While some gay wag, who at his pride was nettled,
Wrote on his back these words “Perused and settled.”
Yes, at the moment, while that country's sword
Is girding round it's half-elected lord,
While zealous friends are calling for the car
To grace the triumph of the fightless war;—
Hark! from afar the rival chariots roll,
And breathless Webster hurries to the poll;—
Delighted yeomen own his juster claim,
And vanquish'd Sugden sneaks away in shame.
So falls, in mounting to some ruddy peach,
A snail, before the tempting prize he reach.
So shrinks an urchin with half broken limb
From some tall tree he tried in vain to climb.—
But see again the royal edict sent
To summon deputies for parliament.

The fox once caught will ever fear the trap,
And scalded children dread a like mishap.
Why gleans not Sugden from experience? he
Again must seek that fatal rank, M. P.
Fool-hardy mortal, try thy wings before
Ambition tempt thee 'mid the clouds to soar.
E'en rotten Boroughs from their notice thrust
The man whose principles they cannot trust,
And treat with scorn the hope of richer pay,
Lest he, who promises, should first betray.
Not that thy conduct should such censure fix,—
But why from others choose thy politics?
For public duties, public care demands
An upright conscience, and unshackled hands;
No groveling passions should the bosom rule,—
A baffled placeman, or a courtier's tool.
'Tis true that Virtue oft with gold relents;
But be sincere to your constituents.
If Whig, be Whig; if Tory, Tory be,—
And season bribes with due consistency.
Thus in St. Stephen may you gain a seat,
And laugh with Webster at your first defeat—
Thus may you hope from Copley's hand to wrench
The seals, and mount the woolsack, or the bench.

Whate'er befall, the muse thy worth allows,
And turns with laurel to adorn thy brows.
Rich hues of green pervade throughout the wreath,
But scarce can hide some wither'd leaves beneath.
E'en so thy merit with its better part
May serve to cloak the frailties of thine heart.

Another name? 'tis thine impetuous Horne^[35]
With fiery temper, and with looks of scorn.
But little read, or else of feeble brain,
That can but little at a time contain.
Prolix of speech, but coarse and unrefin'd,—
Thou hast no symptom of the cultur'd mind.

Thy words, like waters roaring down a rock,
Astonish all, whose nerves can bear the shock;
Both rise in mists, and end at last in foam,
Thus savage nature feels with thee at home!
Far, far from me be eloquence so grand;
I like to hear, and hearing understand,
Not race thy tongue thro' all it's barren track,
But stop my ears, for fear the drum should crack.

Come, gentle Shadwell,^[36] in thy modest mein
Good sense, good humour are united seen,—
Good sense well temper'd by reflection sage,
That crowns the promise of thine early age;—
Good humour, fraught with many a harmless joke,
Which studied insult only can provoke.
Nought can the muse for censure find in thee,—
Tho' less than perfect, from great errors free.
Be this thy meed for future times to scan,
A trusty counsel, and an honest man!—

But who now creeps along with pallid cheek
And hollow eyes that disappointment speak?—
'Tis he, Fonblanque,^[37] whose dawning years foretold
Of talent cast in Nature's choicest mould,—
A germ, that ripen'd into fruit with care
Rich product worthy of its seed might bear.
Alas! chill Penury with sharpen'd dart
Drank up the vital current of his heart;
Repress'd his Genius in its vernal growth,
And left him struggling with the gripe of sloth.
The fees, that now his air built hopes repay,
Scarce from his door starvation keep away.
O lucky Park,^[38] in pompous visage drest,
How did thy merit earn that ermine vest?
If for the book, that falsely bears thy name,
Did not Fonblanque at least deserve the same?
Go, fine a county for its creaking gate,
Have fifty culverts lest thy dinner wait!

hang thy caprice, rest thy anger wait.
Make mouths at sheriffs, and the bar commit,
Or when abused, with Christian patience sit.
Heavens! must desert for blighted prospects pine,
And honour light on ignorance like thine?—
Must folly to the bench exalted be?
And Wisdom buried in obscurity?
No more; let Park his childish course pursue,
And poor Fonblanque the cud of anguish chew.
Be mine the choice, if fortune so would rule,
The starving scholar,—not the titled fool!

Now with attention let each lip be seal'd,
To hear thy playful speech, sagacious Heald.^[39]
While mirth and laughter on thy steps attend,
The gravest audience must perforce unbend.
Of lazy turn, thy facts are seldom true,
Or widely varied from their proper hue;
Not by design, to make a stronger base
For disquisition—but unknown thy case.
Tho' oft corrected, still thou hast the knack
To send each weapon of derision back;
To scorn the sneer, that others' lips would close,
And hurl it doubly pointed on thy foes.
If just thy statement, then the case is right;
If false, it shines in more perspicuous light.
Thy ready tongue so shifts the point along,
That, come what will, thou never can'st be wrong.
Conviction bends with half persuaded ear,
And sad opponents quake in hopeless fear.
'Tis said, of riches thou art far from nude,
And that the law for pastime is pursued;—
If so, retain thy briefs, but spurn the gold,
For which thy better service must be sold.
For conscience' sake each fee should be returned.—
Ill can'st thou keep what is so idly earned!
Hah! art thou deaf? then try the Thespian plank,
And play to gaping crowds the mountebank!

The muse indignant spurns thee from a place,
Where theft is infamy, and sloth disgrace.

Now Treslove comes—a man, whose plodding ways
Shew nought for censure, and no more for praise.
He speaks sometimes with more than common fire,
But little feeling can his words inspire;
No bright distinction ever can he reach
While calm indifference listens to his speech.
The road to fame he slowly trots along,
Now first, now last amid the vulgar throng;
Like some hot steed, who gains perhaps the start,
But perfect bottom having not at heart,
He drops at last, however urged his pace,
And scarce can save his distance in the race.

Next Rose and Bickersteth their names display;
The last sedate, the first perhaps too gay.
This in astuteness, that excells in sense,
Matur'd by thought, and labour more intense.
The one with head erect and measur'd stride,
The pink of glory, and the pearl of pride;—
Seems as ambitious of a taller form,
Or sick of herding with each brother worm.
That dormant eye and inexpressive cheek
But little promise in the other speak,—
In fact not much has either to admire,
Tho' each may hope to set the Thames on fire.
If little Rose can make the waters blaze,
Be mine the wonder, and be his the praise.
Should plodding Bickersteth obtain the start,
His head is deeper than his looks impart.

How singularly fortunes changes fall!
Slow sneaking forth comes learned Weatherall.^[40]
Yet half asleep, he seems just rous'd from bed;
Still shines the greasy nightcap on his head.
Unwash'd his face and hands, uncomb'd his hair,

Cut is his beard, but left the lather there.
One stocking decently his leg adorns,
The other, inside out, it's neighbour scorns.
No brace sustains his small-clothes from the dirt,
Nor keeps conceal'd the mysteries of shirt.
Still is there something in his face and eye,
That serves to shew the mind's ability,—
A strange effect of visage, that foretells
Profound research, e'en while it's glance repells—
The light of wisdom ting'd by folly's shade,—
Scholastic knowledge turned to masquerade.
He speaks; his diction, exquisitely rare,
Astounds the wise, and makes the simple stare.
Greek, Latin, Hebrew, tear his wearied lungs,
And English learns to speak in other tongues.
Fantastic thoughts fantastic language glean,
And reason wonders what they both can mean.
Ill has he tried to mount the heights of fame
By barter'd honor, and a turncoats name.
Why did he plead for traitors all unask'd?
The truth in vain dissimulation mask'd:—
'Twas injured pride, and baffled hope that urg'd,—
The patriot counsel in the madman merg'd.
How frail for him the web ambition spun;—
As now he is, so was his race begun.
What if he fall, or if he rise again,
We take no pleasure, and we feel no pain.
Few seek his friendship, or to hate have room,—
His heart a wilderness, his head a tomb;
From this the sympathies of life refuse
To spring, or soon their balmy fragrance lose;
That serves to bury Wisdom's ancient lore,
But drives the living from its murky door.
All hail! Sir Charles! not Master of the Rolls,
Tho' half decreed to tend those musty scrolls;
Had but the Premier sooner told his mind,
Or thou, Sir Charles, less hastily resign'd.
Sir Charles! what more? the sybil sisters fly,

And hide in mist the book of destiny!

From realms of darkness let us turn to light—
But where, if not to thee, ingenious Knight?^[41]
An able draftsman, and a speaker bold,
By prudence guided, ne'er by fear controlled,
To clients faithful, not to foes unjust,
In better hands his suit could no one trust.
By honour urg'd, thou wilt not facts conceal,
But with strong argument their force repeal.
Thus truth is ever to thy speech attached,
Nor hopeless cause by blund'ring falsehood patch'd.
With whom can doubt on safer grounds advise!
Tho' young in years, so prematurely wise.
In thee deep study, with experience crown'd,
Refines a judgment naturally sound;
Gives force to sense with which the mind is fraught,
And stamps decision on each passing thought.
Thy private life it boots not here to scan,
But as the counsel, so excels the man;
Thy courteous mein, and disposition bland,
Can tame down envy, and it's rage withstand.
Thee love of virtue leads; nor rough the way
To those, who bend her dictates to obey.
Oh! may'st thou well the tide of glory stem,
And earn thy meed, the legal diadem!

Lo! Pepys with recent dignity elate
Appears, a not unpleasing advocate!
Fast from his lips the dulcet accents fall,
But not in tediousness, the ear to pall;
Seldom or never from that tone they part,
And by their sweetness wind into the heart.

Rise, Basil Montagu^[42], and shew thy face,
Great legislator of the bankrupt race!
In thee I find a character so strange,
Description hardly can its traits arrange.

That tongue's licentiousness, and cheek of brass
Betray the stock, of which thy lineage was.
Not void of intellect, but blind with pride,
In vain discretion strives thy course to guide.
Loud mirth precedes, each struggle for a hit,
And empty sneers supply the place of wit.
If careless clerks pay not retaining fees,
Be free as air, and plead for whom you please;
Make use of knowledge, you were paid to learn
For other's good, and all to mischief turn.
Now state a case, now on thyself reply,
And shine the monarch of absurdity!
Nor less thy brains in making books excell—
Let who will read them, so the volumes sell.
Hodge bought his razors for a bargain, but
Was quite surprised to find they would not cut.
We buy thy books, yet not like Hodge admire;
To give the cut, we throw them in the fire.
To read would go beyond thine own intent,
And fix on us a double punishment.
For loss of money grief will soon abate,—
But what for loss of time can compensate?
Away; with tomes no more the world appal,
But rule supreme thy Court of Basinghall.^[43]
Maintain thy temple in its purest state,—
A den of thieves to rapine consecrate.
Let perjured rogues the plunder first prepare,
And just partition be thine only care!
Away with conscience, 'tis an idle tale,
Reward thy service 'till the assets fail!
The service what? Each sovereign fee to store,
And curse the law, because it gives no more;
To hear a bankrupt, or a counsel prate,—
Sometimes a dividend to calculate,—
(But this not oft, if truth confessed must be,
As lawyers seldom know the rule of three,
Or by their art so much the estate reduce,
That holden God is in the room of man)

That luckless Cocker is no more of use
To tender oaths in heathen mockery,
And send to Newgate all who will not lie;
To hold ten meetings at a time, because
Ten golden coins, instead of one, it draws;
To do and not to do—that is to leave
Undone the business, but the cash receive;
To make adjournments 'till another day
Of what might be dispatched without delay,
If Avarice could brook the lesser pay.
These are the pleasures of thy realm, where trade,
At war with honesty, it's grave hath made;
Where pale Britannia sits in speechless woe,
And trembling marks the inroads of a foe,
Whose arts at last will public safety sap,
And tear the fruits of commerce from her lap—
Achieve what foreign states have tried in vain—
To crush her empire—or curtail her reign!

But speed, my muse, thy roving spirit mend,
Or rhymes, like causes, ne'er will have an end.
Let portraiture no more thy thoughts engage,
Nor stoop to make a law-list of thy page.
Where praise is due, let public fame bestow
The meed; and scorn to want of merit shew.

Off to the court, a cause the criers call,
And echo answers from the neighbouring hall.
'Tis ours at last; and now shall law decide
How long possession must a title guide,—
If sixty years less one unlucky day
Might turn Giles Dobbin from his farm away;
Not that a soul disputes his present claim,
But what may be, is, as it were, the same:—
That is, if Giles to neighbour Gripe dispose
A field, and Gripe should by the bargain lose,—
Giles with delight his contract seeks to keep,
And Gripe a loop-hole from the net to creep:—

Nor hard the task; for error shines reveal'd,
Tho' dark itself, from others not conceal'd.
But what in law is error? ask the wind,
Whence comes it? goes it? what it's shape or kind?
Seek from the moon to know each mystic spot,
And judge what constitutes a legal blot.
'Tis something coin'd of ignorance and doubt,
Despis'd by sense, yet seldom found without;
A light, that glimmers thro' some narrow screen,
Which scarce admits the feeble ray between;
A poison'd bubble, floating in the air,
That, when it bursts, will leave it's venom there;
A Gorgon's head, on which the eye, once set,
Must think with terror, and not soon forget;
A monster gliding underneath the wave,
That but appears, to prove the swimmers grave;
A flame that gouls from moulder'd coffins rouse
To shew the horrors of the Charnel-house;
A lamp of Hell, by imp malignant wrought
To scare the sight, and agonize the thought;
'Tis this, that mars all peace; engenders strife,
And adds self-ruin to the woes of life.

See, from the dust a novel creature spring,
The serpent's nature with an eagles wing!
With tooth so sharp, and pow'r to soar as high
Thro' all the pathless realms of sophistry!
Conveyancer^[44]! so call'd, because his art
Can change and motion to estates impart;
Not by the efforts of mechanic hand,
But using legal error for a wand.
In vain the son his grandsires right displays,
And widow'd mother for her dowry prays.
A deed unsign'd, or signed too late, too soon,
A secret testament, a prior boon—
No stamp, or one not properly affixed,—
An instrument with fraud or weakness mix'd,—
A marriage, not by proper ritual grac'd,—

A seal by chance destroy'd or name effac'd,—
A passage interlined, or falsely crost;
A fine unlevied, or recov'ry lost,—
Construction varying with the varying mind,
And best opinions changing, like the wind,—
A meaning clear, tho' doubtfully express'd,—
A meaning doubtful, tho' in clearness dress'd,—
A rule of law, by folly misapplied,—
A point, which justice never yet has tried;—
All these, and thousands more the muse could name
The strength enfeeble of possessive claim;—
Give to this monster necromantic skill,
And make the law subservient to his will.
Lo! at his bidding money chang'd to lands,
And lands to money, as his voice commands;—
Estates for life a stinted term bewail,
And those in fee are hamper'd by a tail,—
O'ergrown remainders vanish into dust.
And useless uses take the form of trust.
'Tis his to conjure doubts, to breed dismay,
And hunt, a jackall, for the lions prey,—
To lend his aid, when crafty villains ask,
And clothe their purpose in an honest mask!

Nor rare the tribe; altho' at first confin'd
To few; and those of scientific mind,
But yet not much enlighten'd;—as the spark
Of ill-wrought taper makes the night more dark,
Such Hargreave, Butler, Fearne, and many more,
Whose names have added to the mystic lore,
Which all must own was mist enough before.—
But these have had their day; and Preston^[45] now
Assumes the sway with dictatorial brow.
And who is he? from whence? and what his claim
To be inscrib'd upon the rolls of fame?
In Devon born, he duly serv'd his time,
That long five years apprenticeship to crime—
Which at the desk he spent without a bribe —

Which at the desk he spent without a guide,
The ready copyist, and the unsullen scribe.
From Shepherd's Touchstone next he drew a source
Of knowledge useful for his future course;
Thence did he learn each deed with curious eye.
To scan by practice of anatomy:—
As surgeons carefully dissect the heart,
To gain experience of each inward part.
Thus plodding on, while greater talents slept,
He and his doctrines into notice crept.
But novelty is past; and, like the worm,
That, for a time, has ta'en some brighter form,
Turns to the grub again, when life is gone;—
So Preston's glory into air hath flown.
See in his chamber, where yon mirror hangs!
'Tis there he studies for his court harangues:
Harangues, whereby he seldom gains a cause,
Yet never fails to win his own applause.
He lisps—did not Demosthenes the same,
Before with pebbles he that fault o'ercame?
What, if conceit possesses Preston's mind?
Pray, was not Cicero as vainly blind?
Not that I mean—no, reason aid me there—
With one or other Preston to compare.
They shine bright stars of eloquence sublime,
Each name untarnish'd by the rust of time;
While Preston's name will last no longer than
The brief continuance of his own short span.
Fate in himself hath wisely plac'd the key
Of all he ever was, is, or shall be.
His praise with life shall to the grave descend,
One common burial and one common end!—
Unless, perchance in folly's rank supreme,
He still may live to be of mirth the theme,
When those, who pass yon barren moors, shall state
How well he tried those heaths to cultivate;
Raise vegetation from the granite stone,
And rule the will of nature by his own.

The cause is open'd. Bell begins to plead,
And argues thus that Dobbin must succeed,^[46]
“My Lord, your Lordship sees by common sense
“What is the object of my friend’s defence.
“A losing contract don’t exactly please,
“And that’s the reason, as your lordship sees.
“This having thus premised”—“nay, stop,” cries Horne;
“The statement really is not to be borne;
“A client breathes not, who can mine excell,
“At least as upright as my brother Bell.”
Then Bell resumes his speech with stutt’ring phrase,
“Why interrupt me when I state the case.
“Your Lordship knows that when men feel despair,
“They strive by noise to dissipate their care;
“Just so my friend that feeling would repress
“By dint of rage and stormy scornfulness;
“And well I know this conduct is but meant
“To break the order of one’s argument.
“So this I say, the judgment seat before,
“That right is right;—I do not plead for more.
“Defendant will not to his purchase stand,
“Whereby my client loses cash and land.
“Can this be right? No. Then, ’tis clear to me
“Relief with costs your Lordship will decree!”

Next Horne uprises with resentment dire,
And sputters nonsense in a speech of fire.
“My Lord,” he cries, “behold this massive bill;
“The office copy would a volume fill!
“ ’Tis only done my client to oppress,
“Investing falsehood with a grander dress,—
“The whole a tissue of malignant lies;
“Defendant’s answer every fact denies.
“My client has perhaps the land enjoyed,
“But then his money has been unemployed;
“For, when the abstract was from Preston got,
“It shew’d too glaringly the fatal blot.

“Possessive title, as your Lordship knows,
“Full sixty years enjoyment must disclose.
“Now it so happen’d that on Lady Day,
“When my poor client had the cash to pay;
“Hours four and twenty (so the fact appears)
“Must pass, to make a term of sixty years.
“The point, tho’ doubted once, is set at rest;—
“My friend may smile, but mine will be the jest.
“I claim your Lordship’s judgment on my side
“With all the foresight of triumphant pride.
“Nor care I who may blame! my client stands
“For Justice; and the law, not praise, demands:—
“If harsh the deed, his conscience may atone,
“But to the priest be that confession known.”

Thus Bell replies—“My Lord, behold my friend,
“Another Shylock—comes our lives to end.
“The pound of flesh he claims in barb’rous mood,
“Tho’ death should follow with the loss of blood.
“My friend admits the only flaw he knows
“Thro’ all the title to the paltry close,
“Is that on Lady Day a few short hours
“Were wanting to complete this term of ours;
“And that, because the title then was found
“Defective, nought on earth could make it sound.
“Who doubts the motive of such rotten plea?
“My friend may fume, ’tis plain enough to me.
“He asks for Justice.—What is Justice here?
“On March the twenty-sixth, our right was clear.
“That very day as evidence will shew,
“Defendant from his purchase wish’d to go,
“In this deceptious refuge took resort,
“And drove us most unwilling into Court.
“If law and justice in one point unite,
“My friend is wrong, and I am surely right.
“Who makes a contract must the terms fulfil;—
“We always have been ready; are so still.
“The title clear: the field by Grine possess’d.

The title clear, the right by simple possession,
“No purchase money paid, nor interest,—
“Is this a case for cautious doubt to pause?
“Let common sense at once decide the cause!
“Substantial justice to my claim decree,
“And make for once a Court of Equity.”

Now hear the judge. “This cause I cannot end,
“But must with sorrow to the master send.^[47]
“Let him into the business well inquire,
“And state each fact, as parties may desire,—
“What changes, if at all, has undergone
“The title; and when first a right was shewn.
“These points the wisest master should engross;
“So let the matter be referr’d to Cross.
“All other question, and the costs be stay’d
“For future judgment, when report is made.”

Ye heathen bards, in whose Tartarean Hell
“Hope withering droops, and mercy sighs farewell.”
Dark scene of horror, punishment, and fear;
Behold its agonies depicted here!
Another Tantalus attempts to sip
The welcome spring, that flows to mock his lip:—
Another Sisyphus rolls up the stone
To some tall height, from which it thunders down:
Here wretched dames, who never did a crime,
In filling sieves are doom’d to spend their time;—
Here too Ixions writhe upon a wheel
With pangs, that disappointment makes them feel;
While Tityus lies, by justice thrown aback,
And owns the tortures of a sharper rack;
Despair, the vulture, on his liver feeds,
And laps each gory life-drop, as it bleeds,—
Screams with delight at the prolong’d repast,
And owns no more the anguish of a fast!

In Chancery Lane a fabrick^[48] rears its head,
Whose vermin inmates by foul plunder fed

Whose venom mingles, by foul plunder too,
In impious candour drown all mental qualms,
And cringe for bribes, as beggars ask for alms.
There registrar's in form prepare decrees
With long recitals, adding to their fees;
While ill-paid clerks, unable else to live,
From office copies equal spoil derive.
Woe to the thrifty wretch, whoe'er he be,
That asks from South^[49] no copy of decree!
In vain attention shall he claim; in vain
To idiot Burrows of delay complain.
Threats and entreaties meet the same neglect;
But take a copy, and secure respect.
Thus tam'd, no more the pug-nos'd monkey fear;
For all your wants command the pliant ear!
Your welcome face will haunt him in his dream,
And every smile a copy-order seem.

Nor less are ent'ring clerks by lucre sway'd,
Tho' shame invests their purpose with a shade.
If orders press, they will not take a bribe:—
No, tempt not thus each conscientious scribe!
They spurn all gold you would on them confer;
But pray, be gen'rous to the stationer.^[50]
A name invented rapine to conceal,—
As tailors cabbage, but disdain to steal.
Thro' all the court it runs from right to left,
By custom sanctified, tho' still a theft.
No outward form of words will vary crime;—
Who cribs an egg, may rob the house in time.
Once pass the bounds of uprightness, and see
How quick the transit into knavery!

Of all this dunghill crew there triumphs one,
Whom I must name Corruption's favourite son!
Abbott^[51], stand forth! thou pious-looking elf,
Cloak in that simple face thy love of pelf;
Of pelf extorted from the suitor's purse.
Oh! may it prove to thee and thine a curse!

Oh! may it prove to thee and time a curse:
Let all reports thy greedy hand hath fil'd
Start from their shelves, and hearing thee revil'd,
Make known each instance of thy golden lust,
And own the muse is in its censure just.

Before my sight another viper's nest^[52]
Appears, as foul and loathsome as the rest;
Where bad accountants shew no other tact,
Than that which centres in the word "subtract"—
That is, from others' pocket to transfer
(The price of peace) what none would else confer.
For this objections, flimsy as the net
A spider weaves each passing fly to get,
They coin, and language turn from its intent
To speak a purpose that was never meant.
Some name mis-spelt—one letter less or more,
A petty blunder ne'er observed before,—
A mode of diction not precisely plain,
When fools attempt the grammar's art to strain,—
Add to delay full many an iron bar,
And every effort of progression mar.
For, like the hydra, should you crush one head,
Behold ten others rising in its stead!

Alcide's labours seem reviv'd, but none
Are found, like him, to combat vice alone.
Where right should flourish, see the weeds of crime
Brought to perfection by the viper's slime;
Guilt spreads unnotic'd over Virtue's ground,
And crawling reptiles spit their venom round.

Time was, when I on common sense intent,
These cocker critics fought with argument;
But soon I found that weapon better told
When slyly pointed with a piece of gold;
Conviction follow'd, as I gave it in,
And all confess'd my art deserv'd to win—

may heaven's recorder blot away the sin!

Speed onward, Pegasus, and take a peep,
Where sixty clerks with their six elders sleep;^[53]
Of whom the muse no good account can give,—
The worst of idlers in a dronish hive.
To do their duty on the Bible sworn;—
That oath should seem as taken but in scorn.
Why should they labour in so bad a trade?
Ten pence for ninety words is vilely paid;
And six and eight-pence adds but little strength,
When taxing bills according to their length.

Luxurious Baines! how often have I knelt
To beg thy presence, 'ere the news was spelt!
When idle fits enchained thee to the fire,
In vain persuasion, or the look of ire.
No force could motion to thy limbs impart;
A torpid creature, without head or heart!
And yet in thee the same weak point abounds.
Paid on account a cheque for fifty pounds
Thou feelest then a temper far more civil,
And for that sum would follow to the devil.
No more the blood-drops stagnate in thy veins;
No more can truth describe thee, lazy Baines!

Taxation^[54] hail! thine academic school
Behold, where all are taught to judge by rule,
Not reason. Fools are ever paid the same
As those, whose talents grace the rolls of fame.
Successful labour gets no better pay
Than indolence, that loiters on the way;—
No matter what the toil, or care, or pain,—
Should usage fail, remonstrance pleads in vain.
In odious custom judgment lies interr'd;
To that is argument and sense refr'd.
By general nostrums quacks endanger life,
So clerks in court apply the pruning knife.

The system tops each rotten bough, 'tis true;
But then it severs many a sound one too.
Turn to the tedious process of contempt;—
Why should my foe from payment be exempt,
If, firm in every stage, except the last,
He leaves to me all damage of the past?—
Nor this the only point for suitors grief;
Ten thousand others claim a like relief.
If judges must permit delay at all,
The costs at least should on the guilty fall:
For where is justice, reason, law, or sense,
When parties in the wrong escape th' expense.
No shelter lies beneath a silly rule;
It serves but to increase the ridicule;—
The blund'ring precept of some ancient sage,
Whose light is darkness in the present age.

There are, I hear, who bound in plainer calf
From every item always tax one half—
A sapient plan! which he, who draws the bill,
Can well defeat without a Turpin's skill.
'Tis but to double what he means to score,
And thus hath plunder found another door;—
A place of entrance smuggled, as it were,
Thro' one, who should prevent intrusion there!

I leave the cause with which my strain began;
For why again the same dull topics scan?
What Cross decides will not be right in course,—
Of new delays, and fresh appeals the source!
The ground, law's hopeless victim trod before,
Must be re-trac'd with tardy pace once more.
Years of long trial he must pass again,
Till death shall finish, not his suit but pain;
And if, perchance, his twentieth heir shall see
An end to this heart-eating misery,
To pay large extra-costs the wretch can't fail,—
His fate St. Lukes, the Workhouse, or a Jail.

A Court of Equity is well defin'd
By those, who call it "very, very kind,—"
The dwarf, who to a giant friend applied,
Obtain'd large conquests fighting by his side;
But every battle lopp'd away a limb.
Suitors! are you not very much like him?
Without that giant's aid in vain the war;
But his is all the profit, yours the scar.
What boots success, if dearly bought with life?
Defend me, Heaven! from such victorious strife.
Ye dwarfs, no more such strong protection seek,
Unequal friendships always hurt the weak!
Ye injured, shun all help from Chancery!
The Court's a hell, of which death keeps the key!!!

Still are there cases, where it seems to shine,
But 'tis like icicle in iron mine,—
Bright for a time, and brilliant beams it's ray,
But soon it breaks or melting fades away;—
Thus when the Court, a Foundling Hospital,
On orphan babes^[55] it's parent hand lets fall,
The deed so charitably good appears,
That fond delusion hails the sight with tears;—
But soon alas! those tears of joy will turn
To drops of bitter woe, the soul to burn—
E'en babes must pay of guardianship the price,
And feel the gripe of legal avarice.
The masters word must ever guide their fate
In person, conduct, marriage, or estate.
Some trees want felling; houses claim repair;
A lease is sought; are the conditions fair?
Receivers would upon a farm distrain;
Guardians of too small maintenance complain;
In every case, before an act be done,
Must approbation from the Court be won;
Aye, e'n ere Hymen's torch can hallow love,
The Court and Master must its joys approve.

Oh! happy infants, how supremely blest!
To this parental care is but a jest.
A tiger of her young, by death withdrawn,
Supplied the loss by suckling a young fawn.
Maternal love into her bosom crept,
And for a time each wilder passion slept;
But famine soon upon the savage grew;
With sparkling eyes her foster cub she drew
Close to her dugs, where lay the milky sup;
And out of pure affection eat it up.
Just so the Court each tender orphan treats;
But 'tis the fortune, not the babe, it eats.

When men run mad, the Court effectual pains
Exerts, that none should e'er resume their brains;
For picture one, who buried in the tomb
Should wake again amid the charnel's gloom,
Find his cold corpse by winding sheets secur'd.
And thus within a narrow vault immured;
Say, would the light of his returning sense
Do more, than once again expel it thence?
E'en so the maniac, if, by chance, a beam
Of wand'ring reason thro' his head should gleam,
What speechless horror would he feel to see
Himself and substance wards of Chancery?
That prospect all reviving sense would sever,
And plunge his mind in darkest night for ever!

Should partners quarrel in their mutual trade,
What friend so ready as the Court to aid?
View'd from afar it's proffers kind may seem,
But near acquaintance proves the whole a dream.
Death at our call a visit oft will pay,
Surprised to find we wish him far away;—
So Chancery suitors are compelled with grief
To spurn the hand, from which they sought relief
Whate'er the joint concern; for five per cent

The court secures an able management;
Keeps just account, but at a large expense,
And claims great merit for it's abstinence.
Thus Eldon long of Opera House the warden,
And erst ex-manager of Covent Garden,^[56]
Play'd many parts on the commercial stage;—
The most extensive chapman of the age.
In iron now, and now in brass he dealt,
But gold would never in his fingers melt;
With careful hand he kept the precious ore,
And every guinea made him wish for more.

When stinted tenants do or threaten waste,
Fly for injunctions to the court in haste;
And weep at leisure o'er the wasted means,
That e'en success from such procedure gleans.^[57]
Another's faults are seldom pass'd unknown:
How few will condescend to cure their own!

Ye hungry churchmen, fond of tithes in kind,
Hunt ancient records, ancient rights to find.
Preach to your simple flock of peace with tears,
Then,—set them altogether by the ears;
And, should you wish sincerely lov'd to be,
Drag all the parish into Chancery—
For your's is not the fault, but theirs, who bilk
The starving rector of his tithes of milk,
Of corn, potatoes, wood, calves, geese, and swine;
Say, claims he not the tenth by right divine?^[58]
From holy writ the principle is taken,
And he who doubts will scarcely save his bacon!

How many jars from nuptial contracts rise,
And add fresh force to legal sacrifice!
Decay'd affections, ere they quite expire,
Erect in Chancery their fun'ral pyre;
The husband lights the flambeau for his spouse,
And both in turn contention's spirit rouse:—

Still is it singular, 'mid all their strife,
How well they keep the part of man and wife.
Each on the other loads abuse at first,
But ends at last in cursing law the worst.^[59]

Of all the copious springs, that Chancery fill,
The most prolific is a nabob's will.
From every line a source of contest flows,
That wakes to light, when he sinks to repose.
How would the miser, who hath left his hoard,
To build a place for service of the Lord,
Or some more charitable purpose, stare,
To see that treasure given to his heir,^[60]
A thoughtless prodigal, to whom, in hope
Of making better he bequeathed a rope;
The only loom which that young gen'rous elf
Wished the testator to enjoy himself.
There's not a legacy, or land devise,
On which some legal question may not rise,
Of long litigious misery the root,
Set by a hand, that never reaps its fruit.

Oh! Equity, thou o'ergorg'd beast, digest
What now distends thy maw, and spare the rest.
Let weary jackalls slumber for a time,
'Till sleep begets an emptiness of crime.
When hunger calls, employ again thy pow'r,
But mangle not, unless thou can'st devour.^[61]
Of death itself we little should complain,
If lingering torments did not add to pain.

Exhaustion summons; not that matter fails,
But idle nature o'er my muse prevails.
A weariness in her perhaps may find
The same sensations in a reader's mind.
Enough for me, if one amid the throng
Shall learn to profit by my humble song;
Embark not vainly in a losing cause,

Nor seek protection from deficient laws.
Enough for me, if by exposure shamed,
One wretch shall be from vicious acts reclaim'd;
Admit that truth has temper'd censure's rod,
And rescued him from Beelzebub to God!

THE END.

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FOOTNOTES:

[1] Market day to a country attorney, is like sowing-time to the corn-field. It lays the foundation of his professional harvest. From the conferences of that day spring all his actions at law, and his chancery suits. Litigation, encouraged by legal advice and good ale, warms into action, and is no longer restrained by the dictates of sober prudence.

[2] Every one knows the difficulty of reading Bell's opinions. He is said to have three sorts of hand writing: the first he can read himself, but his clerk cannot. The second his clerk can read, but he cannot. The third, no human being; no, not even the most learned decipherer of hieroglyphics, can make out.

[3] I mean no personal disrespect to Mr. Bell, whose superior talents I freely acknowledge; but such are the opinions of most counsel, and on such precious morsels of indecision are founded chancery suits without number.

[4] This is a scene from Lincolns Inn. There is not a draftsman or solicitor, that will not feel the truth of it; the one with conscious shame, the other with that bitterness of spirit, arising from the recollection of repeated disappointments of a similar nature to those described.

[5] It is this demand of "money on account" that first removes the film from the eyes of the unhappy client. He then discovers the full horror of his situation. Expenses have been incurred, and to retreat will involve him in a certain loss. He therefore determines to proceed, but with terror in his looks, and despair at his heart.

[6] All chancery writs are sealed, which, being a mere matter of form, is done in a moment. Certain days, however, are appointed for this ceremony, and should any pressing business occur at any other time, it is necessary to pay a fee of two guineas to open the seal, as it is called.

[7] I recommend no man to attach his adversary for want of appearance or answer—let a defendant take his own time. The allowed costs of an attachment are somewhere about eight shillings and two pence, upon tendering which sum the defendant is entitled to be discharged from his contempt, although the plaintiff may have incurred an expense of 20*l.* in executing the

process, and carrying his opponent to goal. Another instance of the propriety with which this court is denominated a “court of equity.”

[8] Should a solicitor be negligent in his business, the clerk in court will amuse himself for years with handing alternative notes of “Answer or Attachment” to the adverse clerk in court, without the least probability of any attention ever being paid to them. In every case this ridiculous courtesy is productive of much unnecessary delay. The order for time is equally useless and absurd. A defendant in a country cause is entitled as of course to two; one for six weeks, and another for a month. Why could he not be allowed to claim the time he is thus entitled to without this mummary and expense.

[9] An ingenious draftsman, well versed in all the dilatory knowledge necessary to protract a suit—the uncle, I believe, of the notorious Edward Gibbon Wakefield!

[10] James Lowe of Southampton Buildings, Chancery Lane, a well-known solicitor, very fond of drawing his own pleadings, but which, it is said, he cannot often get counsel to sign. Koe obliges him occasionally with his sign manual, but I have understood that this gentleman’s conscience is too tender on some occasions to give perfect satisfaction.

[11] To whom is the ignorant and blustering Francis Cross unknown; once captain of Militia, now master in chancery? His qualifications for the latter office are said to have been discovered by the late Lord Chancellor in the gallant exertions he displayed in assisting his Lordship and Lady Eldon out of the kennel, in which a broken down carriage had left them sprawling. Any scavenger would have done as much. Gratitude on this occasion really carried his Lordship too far, but as the only instance on record of any thing like feeling in his character, it is well worthy of admiration. The military genius of Captain Cross still displays itself in the repeated volleys of fire, ending in smoke, with which he attacks all those who have courage enough to dispute his erroneous opinions.

[12] Samuel Compton Cox,—a worthy man, but one who lets his passions outstrip his judgment. The slightest observation will often give offence, and anger renders him deaf to all reason and argument.

[13] Francis Paul Stratford—a gentleman, who frequently amuses himself with throwing books at the solicitors attending before him.

[14] James Stephen—a great advocate for the abolition of the Slave Trade—much to be commended for having abolished in his office that shameful practice of giving to the chief clerk large un-authorized fees upon every report. Few men would have had courage enough to brave the odium, to which such a step, unimitated by the other masters, must have exposed this gentleman.

[15] James Trower—the most trifling of all official babblers.

[16] John Pugh chief clerk to Sir Giffin Wilson, and John Hone the same to Master Cox. Should a solicitor pay not handsomely these two worthies, let him expect but little attention. From the former, indeed, it is hardly possible by any means to secure civility.

[17] Mr. Kensit and Mr. Jones; two men as remarkable for their abilities and civility as for the amiable contrast they exhibit to the two masters (Stratford and Cross) of whom they are respectively chief clerks.

[18] Lord Lyndhurst—the present Lord Chancellor—late Sir John Singleton Copley Knight—a man of strong intellect and sound judgment, but totally inexperienced in the practice and principles of a court of equity.

[19] The Earl of Eldon. The descriptive portrait of his Lordship is drawn from my own observation—my readers (if I should ever be fortunate enough to have any) will judge of its

correctness.

[20] Sir John Leach, late vice chancellor, now master of the Rolls; the peculiar object of dislike to Lord Eldon on account of the comparative dispatch with which he disposed of the causes that were brought before him.

[21] Henry Brougham, (pronounced “Broom”) whose continual attacks upon his Lordship, and the court over which he presided, gave mortal offence.

[22] Her Ladyship’s frugality is well known. It would be out of place here to repeat the stories of the turbot and turkey.

[23] Mr. Hand Clerk of the papers to the late Lord Chancellor, who could never be prevailed on to receive papers, where he could avoid it with any sort of decency. Adverting to the immense accumulation of papers he used to say that the Chancellor could scarcely enter his own house without being in danger of breaking his shins over a bundle of briefs at the door.

[24] This being only an interlocutory proceeding, the *supposition may perhaps be entertained*.

[25] William Agar and his mansion in the country, near St. Pancrass workhouse, are well known. So inviolable does he maintain his territorial rights, that a poor wretch caught angling in his fish-pond the other day, was, as I hear, transported for that heinous offence. Frowd, of the firm of Frowd and Rose, Carey Street, and Philip Hurd, of the house of Hurd and Johnson, Temple, are notorious as the chief providers of this calf-like lion.

[26] George Spence. This gentleman, who lately contrived to get himself returned member of parliament for a few weeks, had the vain effrontery to inform the House of Commons that his sole object in getting there, was to instruct them in legislation on equitable juris-prudence.

[27] Witnesses in Chancery are examined upon written interrogations prepared and signed by counsel: a most wretched and ineffectual system of extracting truth. The execution of the commission is entrusted to friends of the solicitors in the cause, and the witnesses are all previously well tutored as to what it is expected of them to swear. The proceedings are always conducted at an inn, where the solicitors, commissioners and witnesses, drown all their animosities in the sociability of the table. Every day is provided at the expense of the litigant parties a dinner, at which the viands and wines are the very best and most expensive that the house can afford. Liberal potations of course produce head-aches, for which there is nothing so wholesome as air and exercise. Business is thus frequently neglected for the sports of the field. Can any censure be too severe for such iniquity?

[28] The depositions of witnesses are liable to be suppressed on many trifling grounds, which is another serious grievance arising out of the mode of taking evidence in the Court of Chancery. I was some time ago informed that the omission of the letter “s” at the end of the word “evangelists” in a jurat, actually caused an expense to the plaintiff of about 80l.

[29] The death of a party, who has an interest in any cause, often produces infinite delay. I have known a suit remain inactive for many years in consequence of there being no person who would take out administration to the deceased.

[30] The change or death of a solicitor in the cause is also frequently the means of prolonging a suit. There are many instances in which the taxation of a suitor’s bill has been pending for several years. Our friend James Lowe is here introduced on the grand arena of his fame. He carries taxation to an extremity of meanness and hostility that is perfectly disgusting!

[31] Solicitors are allowed 4d. a folio of ninety words for abbreviating pleadings, and 3s. 4d. a brief sheet for copying the abbreviations. They are also allowed 10s. a sheet for drawing

and copying observations, which I will venture to say no counsel ever reads. The word “brief” is truly the “lucus a non lucendo.”

[32] Sir Samuel Romilly, who, with all his virtues, was as much attached to fees as any man. Hundreds of briefs did he take when he must have known that it was impossible for him to attend to them. A man cannot divide himself, nor be at the same moment in the House of Lords, and the Court of Chancery.

[33] Sir Anthony Hart, of considerable experience in the principles and practice of the Court of Chancery; but a prosing and monotonous advocate. One of his long speeches has frequently set me to sleep, and I believe I was not singular in my drowsiness. He has recently been created Vice Chancellor.

[34] Edward Burtenshaw Sugden, a counsel who always reads his briefs, and does justice to his case. He has written a book on powers, which he frequently cites as “The Book on Powers.” He has great talent, and has also the wit to know it. The Sussex election, at which he was so hastily “perused and settled” by Sir Godfrey Webster must be fresh in public recollection. His conduct more recently, on proposing himself for a borough, and offering to be guided in his politics by the wishes of the electors, deserves severe reprehension; but for this perhaps he is sufficiently punished by the exposure of his correspondence to that effect.

[35] William Horne, an angry snarler, of fluent speech, but feeble argument.

[36] Lancelot Shadwell, who well merits all that is said of him.

[37] John Fonblanque; who has merited more than he has obtained. His notes to the Treatise on Equity, are written with very considerable talent.

[38] Mr. Park, who some few years ago published a book of some merit, but which, it was said, he never wrote. This work, however, and his affectation of extraordinary piety seem to have been the cause of his elevation to a dignity, for which he was totally incompetent. His behaviour in court was occasionally that of an idiot. When on the circuit, the door of the town-hall must not creak, nor he be kept a moment from his dinner under any circumstances. His ill-temper exposed him to continual quarrels with the counsel, and whenever he found himself in the wrong, he talked of behaving towards one he might have offended with the patience of a Christian judge.

[39] George Heald, a man of great abilities, and considerable wit, but so idle that he seldom reads his brief. If the statements of counsel may be supposed to have any weight on the mind of the judge, what must be the situation of Heald’s client;—of whom the adverse counsel may state what he pleases as alledged in the pleadings without the fear of contradiction; for how can the other know whether it be true or false? To be sure if Agar were his adversary, he might give a shrewd guess!

[40] Sir Charles Weatherall!—late attorney general;—an office, to which it should seem he had long aspired. His defence of Watson, Thistlewood, &c. is well known; and the motive of his conduct in that affair is said to have been disappointed ambition. On the occasion of the late change in the ministry, it was asserted that a letter from the premier, appointing Sir Charles, Master of the Rolls, and from Sir Charles, tendering his resignation of the office of Attorney General, crossed each other on the road.

[41] James Lewis Knight;—of whose sound judgment and sterling talents I am glad to have an opportunity of offering this small tribute of admiration.

[42] Basil Montagu!—employed only in bankruptcy cases. He is particularly notorious in stickling for retainers; without which he pretends to think himself justified to support a petition to-day, and oppose it to-morrow. He is also an author; or, I should rather say, a compositor of

books, which are sometimes bought, but not much read. I do not trouble myself about his genealogy.

[43] The bankruptcy system in this country is most horrible. Let any one visit the commissioners court in Basinghall Street, and witness the scenes that are there transacted. The commissioners are paid 20s. for each meeting, and in order to make the most of their time, they have frequently ten different appointments at the same hour. The confusion may be easily conceived.

[44] It was not until lately that the practice of conveyancing was converted into an independent branch of the legal profession, and clogged with all the niceties in which it is at present enveloped. Few titles can stand the test of the all-searching scrutiny with which they are now investigated. Conveyancers always furnish a very abundant supply of litigation to the Court of Chancery.

[45] Richard Preston, brought up in a country attorneys office, and thence removed to London, where he has for several years practised as a conveyancer. He is the editor of a work called, *Shepherd's Touchstone*, and the author of several publications on conveyancing. In the early part of his career he obtained some reputation for talent, but much of it has passed away. He is vainer of his oratorical powers than a peacock of its tail, but the bird has this advantage over the man, that others unite in admiration of its feathers; while Preston is compelled to be satisfied with his own applause. He once formed a project, very ingenious no doubt, for cultivating some of the barren moors in Devonshire, but in attempting to carry it into effect, he was, I believe, nearly ruined.

[46] The arguments, will, I fear, be found very dull; but should the reader ever attend the Court of Chancery, he will find the reality equally stupid. It can hardly be expected of me that I should be able to make Horne agreeable, or Bell amusing.

[47] Some idle reference to the master is the favourite mode of disposing of a cause practiced by Sir John Leach—men who know no better praise him for his dispatch. The suitor finds to his cost that such expedition is very tedious and very expensive.

[48] The office of the registrars.

[49] Mr. South is chief clerk to Henry Burrows one of the deputy registrars of the court. To win South's favor the solicitor must take copies of all minutes, orders, and decrees. It is not very wise to get into his black book. To those, who never bespeak an office copy he is blind and deaf. The following dialogue is said to have taken place between South and a solicitor. Sol. "I shall be obliged Mr. South by your letting me have the short order as soon as possible." South. "Do you take a copy." Sol. "No." South. "Call in a fortnight." Sol. "On second thought Mr. South, I shall want a copy." South. "Oh! call to-morrow."

[50] "The stationer" is a cant term made use of in all the Chancery offices for money you are obliged to give beyond the regular fees for expediting any business.

[51] Mr. Abbot, chief clerk in the office, where reports are filed—from whom the solicitor will in vain attempt to get an office copy of a report, unless "the stationer" has been thought of.

[52] The accountant general's office; where a parcel of addle-headed clerks give the solicitors an infinity of trouble by picking holes in orders and reports for the purpose of shewing their consequence, and inducing the profession to bribe them into silence, which is accordingly often done with effect. It is better to humour the viper, than tread upon his tail.

[53] The office of the six clerks, and of the sixty clerks in court where all pleadings are filed. The principal duty of the clerks in court is to copy the pleadings (for which he is allowed 10*d.* a folio) and to assist the masters in taxing costs at the rate of 6*s.* 8*d.* for every hour or for

every twenty folios in the length of the bill. They are all a set of drones, but our friend John Baines really out Hectors Hector.

[54] Taxation is entirely regulated by custom, and the principle upon which it is conducted often produces the greatest injustice as well to the solicitor as to the client. To get a party into contempt for disobedience to an order of the court a writ of execution must be taken out and served upon him, and various other expensive proceedings resorted to; and yet should he obey the order before the whole process is actually completed, not one sixpence will be allowed against him in costs. There are other instances equally gross. I have often argued against such injustice, but have been always answered “this is our rule, we cannot do otherwise.” Is it not high time that a remedy should be provided. There are some, who in taxing discretionary charges as between a solicitor and his client, invariably take off one half of each item. How must a conscientious solicitor suffer from this mode of exercising direction! The resource of a less delicate mind is obvious.

[55] Infants and lunatics are the peculiar objects of the court’s protection as well in person as estate—but it is like an ogre feasting on the traveller to whom he had offered an asylum.

[56] The court is frequently obliged to interfere in partnership brawls, and wind up the joint trade. The Opera House has been in Chancery for years, and Covent Garden has now the same felicity.

[57] Why is not the court as vigilant in abstaining from waste, as it is in preventing others from committing it?

[58] Tithe-questions present a fruitful source of equitable jurisdiction. It is the fashion of churchmen to boast of their title by “right divine.” If the right be celestial, the remedy is satanic!

[59] Marriage settlements produce infinite litigation, but much as husband and wife may be dissatisfied with each other, they generally end in abusing their equitable mediator—reminding one of the old adage:

He, who between man and wife interposes
Will get black eyes, and bloody noses.

[60] Referring to the Mortmain Acts. Wills supply the court with more than two thirds of its victims.

[61] Alluding to the present over-abundance of business which it would take years to clear away, without the introduction of any new suits. Even brutes refrain from swallowing what they are unable to digest.

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